

1APP Level 2 Sales Associate Agreement

Important: This template is business/legal drafting support, not legal advice. 1APP should have an Ontario business lawyer review before use.

This Sales Associate Agreement (the “Agreement”) is made effective as of **[DATE]** between:

1APP Technologies Inc. (“1APP,” “Company,” “we,” or “us”) and **[ASSOCIATE LEGAL NAME]** (“Sales Associate,” “Associate,” or “you”).

Together, the “Parties.”

1. Purpose

1APP operates a business automation and customer communication platform for local businesses. The Sales Associate may prospect, qualify, follow up with, and help close approved 1APP clients under this Agreement.

This Agreement is intended to protect both Parties by clearly defining authority, commission rights, brand rules, lead ownership, confidentiality, client ownership, termination rights, and payment terms.

2. Independent Contractor Status

The Sales Associate is an independent contractor and not an employee, partner, franchisee, agent, officer, or legal representative of 1APP.

Nothing in this Agreement creates an employment relationship.

The Sales Associate is responsible for:

- Their own taxes
- Their own expenses, unless approved in writing
- Their own tools, devices, transportation, and communication costs
- Compliance with applicable laws while prospecting, contacting leads, and booking demos

1APP will not provide employee benefits, vacation pay, statutory holiday pay, CPP/EI remittances, workers' compensation coverage, or other employee benefits unless required by law.

3. Sales Associate Role

The Sales Associate may:

- Prospect businesses in approved niches
- Use approved 1APP scripts and materials
- Book audits/demos
- Complete basic discovery using the 1APP qualification checklist
- Track all activity in the approved CRM process
- Present standard approved 1APP packages
- Help close standard approved plans
- Bring Tony/Justin or an approved 1APP closer into deals when needed

The Sales Associate may not, without written approval:

- Discount pricing
- Offer custom builds
- Modify contract terms
- Promise same-day launch timelines
- Promise specific revenue, lead volume, rankings, savings, or results
- Sell outside approved 1APP niches or offers
- Sign contracts on behalf of 1APP
- Collect client payments personally
- Create unapproved marketing materials using 1APP branding
- Represent themselves as an owner, partner, officer, or employee of 1APP

4. Required Training Before Selling

Before selling as a Level 2 Sales Associate, the Associate must complete 1APP's required training, including:

1. 1APP overview
2. Target customer training
3. Offer/package training
4. Approved scripts
5. Qualification checklist
6. CRM lead submission process
7. Compliance and brand rules
8. Objection handling
9. Demo handoff process

10. Compensation rules

1APP may require a role-play or certification review before allowing the Associate to conduct sales activity independently.

5. Qualified Lead Rules

A lead is commissionable only if it is qualified, properly submitted, and attributable to the Sales Associate.

A qualified lead must include:

- Business owner or real decision-maker
- Business name
- Contact name
- Phone and/or email
- Serviceable market
- Real business pain related to missed calls, poor follow-up, manual booking/admin, reviews, lead leakage, or customer communication
- Agreement to a 1APP audit/demo or clear request for pricing/info

Not qualified:

- Random names with no conversation
 - Duplicate leads already active in 1APP CRM
 - Businesses outside 1APP's current target market
 - Leads submitted after another associate/company source already created the opportunity
 - Prospects with no realistic ability or intent to pay
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6. Lead Ownership Window

A properly submitted qualified lead is protected for **90 days** from CRM submission.

If there is no meaningful activity for **30 days**, 1APP may reassign or take over the lead.

If two associates claim the same lead:

1. The first properly logged CRM record wins.
 2. If unclear, 1APP decides in good faith.
 3. No associate may argue with the client or damage the 1APP brand over lead ownership.
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7. Approved Plan Pricing Reference

Current standard plans:

Plan	Setup Fee	Monthly Fee
Standard	\$500	\$299/month
Growth	\$1,000	\$499/month
Revenue Engine	\$1,500+	\$799+/month

1APP may update pricing, packaging, or offers at any time. The Sales Associate must use the current approved pricing supplied by 1APP.

8. Sales Associate Compensation

The Sales Associate earns commission only on collected revenue from clients they properly source, qualify, and help close under this Agreement.

Compensation Type	Rate
Setup fee commission	15% of setup fee collected
Monthly recurring commission	20% of MRR collected
Recurring cap	12 paid months per client

The 12-month cap means recurring commission stops after the client has paid 12 monthly invoices.

No commission is paid on:

- Taxes
- Payment processing fees
- Refunded amounts
- Chargebacks
- Free trials
- Free months
- Discounts unless approved by 1APP
- Clients already active in 1APP's pipeline
- Deals closed using unauthorized promises or claims

9. Example Compensation

Example: Client signs the Growth plan at \$1,000 setup + \$499/month.

- Setup commission: \$150

- Monthly commission: \$99.80/month
- Maximum recurring period: 12 paid months
- Year 1 potential commission: \$1,347.60
- After 12 paid months: \$0 monthly commission on that client unless 1APP separately approves an upgrade commission

This is an example only and not a guaranteed income claim.

10. Payment Timing

Commissions are paid only after the client payment is collected and cleared.

Expected payout timing:

- Setup commission: within 15 business days after setup fee clears and onboarding begins
- Monthly commission: paid monthly after client payment clears

1APP may require the Sales Associate to submit an invoice before payment.

1APP will provide reasonable commission reporting so the Sales Associate can understand what was paid and why.

11. Refunds, Chargebacks, Cancellations, and Clawbacks

If a client refunds, cancels, disputes, or charges back a payment, 1APP may reverse the related commission or deduct it from future payouts.

If commission was earned through misleading claims, unauthorized promises, unapproved pricing, brand misuse, or misconduct, 1APP may withhold or reverse commission tied to that deal.

12. CRM and Activity Requirements

The Sales Associate must track sales activity using the approved 1APP CRM or lead submission process.

Required tracking may include:

- Prospect name
- Business name
- Phone/email
- Industry
- Source
- Pain/problem
- Conversation notes

- Follow-up date
- Demo/audit status
- Deal stage

Failure to properly track activity may result in loss of commission attribution.

13. Brand and Conduct Rules

The Sales Associate must:

- Use approved scripts and materials
- Be honest about 1APP capabilities
- Never guarantee results
- Never use fake scarcity or fake urgency
- Never exaggerate earnings, client results, or product capabilities
- Never collect client payment personally unless explicitly authorized
- Protect confidential client and company information
- Follow applicable privacy and anti-spam laws, including CASL where applicable
- Act professionally at all times

Violation may result in immediate termination and possible forfeiture of unpaid commission tied to misconduct.

14. Privacy, Anti-Spam, and Data Handling

The Sales Associate must handle prospect and client data responsibly and only for approved 1APP business purposes.

The Sales Associate must not:

- Export 1APP CRM data for personal use
- Add prospects to mass messaging without proper consent
- Misuse email, SMS, or phone outreach
- Share client/prospect information outside 1APP
- Store sensitive data in unapproved tools

The Sales Associate agrees to comply with applicable Canadian privacy and anti-spam obligations, including PIPEDA and CASL where applicable.

15. Confidentiality

The Sales Associate may receive confidential information including pricing, scripts, systems, workflows, CRM records, client details, training, strategy, proposals, documents, and business plans.

The Sales Associate must keep this information confidential during and after this Agreement.

Confidential information may not be copied, shared, sold, published, or used outside approved 1APP activity.

16. Client Ownership and Non-Circumvention

All clients, prospects, accounts, workflows, automations, documents, CRM records, and business relationships created through 1APP activity belong to 1APP.

For **12 months** after this Agreement ends, the Sales Associate must not bypass 1APP to sell competing or similar services to any 1APP client or active prospect they learned about through 1APP.

This clause is intended as a reasonable non-solicitation and non-circumvention protection, not a general non-compete.

17. Intellectual Property

All 1APP materials, scripts, logos, sales assets, onboarding systems, snapshots, workflows, templates, automations, documents, and training materials remain the property of 1APP.

The Sales Associate receives only a limited, revocable permission to use approved materials while in good standing.

18. No Guaranteed Income or Leads

1APP does not guarantee any income, commission, leads, sales volume, territory, inbound opportunities, or business outcome.

Any examples in this Agreement are illustrative only.

19. Termination

Either Party may terminate this Agreement with **7 days' written notice**.

1APP may terminate immediately for cause, including:

- Misrepresentation

- Unauthorized pricing or promises
- Brand misuse
- Confidentiality breach
- Privacy or anti-spam violations
- Failure to use CRM properly
- Client payment handling without authorization
- Harassment, dishonesty, or conduct damaging to 1APP

After termination, the Sales Associate remains eligible for properly earned commissions from approved, closed, paid clients attributable before termination, subject to refund, chargeback, clawback, and misconduct rules.

No commission is owed on new activity after termination unless 1APP agrees in writing.

20. Dispute Resolution

The Parties agree to first attempt to resolve disputes in good faith through written discussion.

If unresolved, disputes will be handled under the laws of Ontario, Canada, and the courts of Ontario will have jurisdiction unless the Parties agree to mediation or arbitration in writing.

21. Entire Agreement

This Agreement, together with any signed compensation schedule or written amendment, is the entire agreement between the Parties for Level 2 Sales Associate activity.

Changes must be in writing and signed or confirmed by both Parties.

22. Signatures

1APP Technologies Inc.

Name: _____ Title: _____ Signature: _____
Date: _____

Sales Associate

Legal Name: _____ Signature: _____ Date: _____
Email: _____ Phone: _____
